

25STCV33219 25STCV33219

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Case Number: 25STCV33219 Hearing Date: June 25, 2026 Dept: 529

JORGE GUZMAN VS ALEJANDRO JORGE GUZMAN, TRUSTEE OF THE GUZMAN

TABOR TRUST, ET AL.

PLAINTIFF'S

MOTION FOR SUMMARY JUDGMENT

Date

of Hearing: June 25, 2026 Trial Date: None

set

Department: 529 Case No.: 25STCV33219

Moving Party: Plaintiff

Jorge Guzman

Responding

Party: Defendant Alejandro Jorge Guzman, trustee of the Guzman

Tabor Trust; Travis J. Margis, trustee of the Guzman Tabor Trust; and Bailly F.

Guzman, trustee of the Guzman Tabor Trust

BACKGROUND

On November 13, 2025, Plaintiff Jorge

Guzman filed a complaint for partition against Alejandro Jorge Guzman, trustee

of the Guzman Tabor Trust; Travis J. Margis, trustee of the Guzman Tabor Trust;

and Bailly F. Guzman, trustee of the Guzman Tabor Trust.

[TENTATIVE]

RULING

Plaintiff Jorge Guzman's Motion for

Summary Judgment is GRANTED.

REQUEST

FOR JUDICIAL NOTICE

Plaintiff Jorge Guzman requests this court take judicial notice of

the grant deed recorded on September 18, 2025 (Exh. A); grant deed recorded

September 26, 2025 (Exh. B); and grant deed recorded September 30, 2025 (Exh.

C).

The court GRANTS the request for judicial notice.

DISCUSSION

Plaintiff Jorge Guzman moves for an order against Defendants

Alejandro Jose Guzman, Travis J. Margis, and Bailey F. Guzman in their

capacities as trustees of the Guzman Tabor Trust (collectively "Defendants")

for summary judgment to Plaintiff's partition cause of action on the grounds that the undisputed material facts show that the Plaintiff has a right to summary judgment as a matter of law under Code of Civil Procedure section 437.

"[T]he party moving for summary judgment bears the burden of persuasion that there is no triable issue of material fact and that he is entitled to judgment as a matter of law." (Aguilar v. Atlantic Richfield Co. (2001) 25 Cal.4th 826, 850, fn. omitted.) "Once the [movant] has met that burden, the burden shifts to the [other party] to show that a triable issue of one or more material facts exists as to that cause of action" (CCP § 437c(p)(2); see Aguilar, supra, 25 Cal.4th at 850.) The party opposing summary judgment "may not rely upon the mere allegations or denials of its pleadings," but rather "shall set forth the specific facts showing that a triable issue of material fact exists" (CCP § 437c(p)(2).) A triable issue of material fact exists where "the evidence would allow a reasonable trier of fact to find the underlying fact in favor of the party opposing the motion in accordance with the applicable standard of proof." (Aguilar, supra, 25 Cal.4th at 850.)

Plaintiff seeks the entry of an interlocutory order and appointment of a referee to sell the Property. "A partition action may be commenced and maintained by any of the following persons: (1)

A coowner of personal property. (2) An owner of an estate

of inheritance, an estate for life, or an estate for years in real property where

such property or estate therein is owned by several persons

concurrently or in successive estates." (CCP §

872.210(a).) "The court shall order that the property be divided among the

parties in accordance with their interests in the property as determined

in the interlocutory judgment." (CCP § 872.810.) In determining whether

a partition by sale or by physical division should be ordered, "the burden of

proof is on one endeavoring to force a sale as against unwilling co-owners to

prove that the case is not a proper one for partition in kind." (Richmond v.

Dofflemyer (1980) 105 Cal.App.3d 745, 757.)

Plaintiff presents evidence he is a title owner of record and the

parties are co-equal owners as joint tenants. (UMF 1-4.) Specifically, Plaintiff

owned the Property and transferred an interest to Defendant Alejandro Guzman.

(UMF 1, 2.) Defendant Alejandro Guzman transferred his share of the Property to

a trust in which he and the remaining defendants are trustees. (UMF 3.) Plaintiff

still holds a 50% interest in the Property. (UMF 4.) Plaintiff also presents

his declaration, stating a physical partition of the Property is infeasible and

would dramatically reduce the Property's value. (Guzman Decl. ¶¶11, 12.)

Based on the foregoing, the court finds that Plaintiff has

met their initial burden to show that he is entitled

to a partition of the Subject Property, and that a partition by sale

would be more equitable than a partition by physical division.

Defendants filed an untimely opposition. The court, in its

discretion, will consider the late opposition. Defendants argue they do not

seek to deprive Plaintiff of the value of his ownership interest. Rather, Defendants

seek a fair and orderly resolution through completion of the court-directed

mediation process and a good-faith buyout of Plaintiff's interest. Defendants

contend for approximately five years, Defendants Bailey Guzman and Travis

Margis have contributed substantial sums toward mortgage obligations and have

paid the majority of repairs, maintenance expenses, and utility costs

associated with the property. Moreover, the property is presently subject to

existing lease interests affecting both dwellings, including a recorded

Memorandum of Lease concerning the rear dwelling.

The court finds Defendants have not met their burden showing that

partition is improper. Plaintiff had sufficiently presented evidence they are a

co-owner of the property. Defendants have not presented any evidence of a valid

waiver.

Based on the foregoing, the motion for summary judgment is

GRANTED.

Pursuant to Code of Civil Procedure section 873.010, in a

partition action “[t]he court shall appoint a referee to divide or sell the

property as ordered by the court.” Plaintiff requests the appointment of

Stephen Donell. The court will discuss

the appointment of Mr. Donell at the hearing on the motion for summary

judgment.